

ORDINANCE NO. _____

ENTITLED: “PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM MR MEDIUM-DENSITY RESIDENTIAL TO MUB MIXED-USE BUSINESS EMPHASIS FOR LOTS 1-5, BLOCK 19, NORTH CHEYENNE, 2ND FILING, CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST CORNER OF THE INTERSECTION OF YELLOWSTONE ROAD AND PRAIRIE HILLS DRIVE).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of the property described herein have applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on June 4, 2018, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 1-5, Block 19, North Cheyenne, 2nd Filing, Cheyenne, Wyoming is hereby changed to MUB Mixed-use Business Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

North Gate Village Zone District Map Amendment Process

CASE NUMBER(s): UDC-18-00150

SUBDIVISION CODE: NGVL

PREPARED BY: Seth Lloyd

MEETING DATES:

Planning Commission:	June 4, 2018	
City Council:	June 11, 2018	1 st Reading
Public Service Committee:	June 19, 2018	
City Council:	June 25, 2018	2 nd Reading
Public Service Committee:	July 3, 2018	
City Council:	July 9, 2018	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff:

- Master Application; Zone Change Map; List of neighbors to be notified; Draft Neighbor Notification Letter; Summary of why proposal is being sought
- Revised Zone Change Map – submitted 5/7/2018 (submitted in response to Staff comments)
- Neighbor Notification Letter – postmarked 5/15/2018 (sent to fulfill notification requirements)

PLANNING COMMISSION RECOMMENDATION: At their regular meeting on June 4, 2018, the City of Cheyenne Planning Commission recommended approval of the zone change request from MR Medium-density Residential to MUB Mixed-use Business Emphasis by a vote of 5-1.

RECOMMENDATION: Staff recommends approval of the zone change request from MR Medium-density Residential to MUB Mixed-use Business Emphasis.

STAFF REPORT

North Gate Village Zone District Map Amendment Process

CASE NUMBER(s): UDC-18-00150 **SUBDIVISION CODE:** NGVL
PREPARED BY: Seth Lloyd
PUBLIC HEARING: June 4, 2018 (Planning Commission)

OWNER(s): Yellowstone Villas, LLC (307) 630-7550
PO Box 3244
Cheyenne, WY 82003

AGENT: Brad Emmons (307) 637-6017
AVI, PC
1103 Old Town Lane, Ste 101
Cheyenne, WY 82009

PROJECT: North Gate Village Zone Change

WORK DESCRIPTIONS: A zone change request from MR Medium-density Residential to MUB Mixed-use Business Emphasis for an entire block of North Cheyenne, 2nd Filing

LOCATION:

1. Legal Description: Lots 1-5, Block 19, North Cheyenne, 2nd Filing.
2. Location: west of and adjacent to Yellowstone Road, north of Prairie Hills Drive.
3. Addresses: 109, 113, 119, and 123 North Gate Avenue; 110, 114, 120, 124 Prairie Hills Drive; 6329, 6335, 6339, and 6345 Main Street; and 6330, 6336, 6340, and 6346 Yellowstone Road

SIZE: 1.60 acres

CURRENT ZONING: MR Medium-density Residential
PROPOSED ZONING: MUB Mixed-use Business Emphasis.
EXISTING LAND USE: Multi-family (duplex-style)
PROPOSED LAND USE: Multi-family (4plex-style) and Commercial

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Vacant, Low-density Residential, Utility	MR	City
South	Vacant, Office	MUB, PUD	City
East	School, Office	P, CB	City
West	Low-density Residential, Medium-density Residential	LR	City

EXECUTIVE SUMMARY:

This zone change application proposes changing an entire block under the same ownership from MR Medium-density Residential to MUB Mixed-use Business Emphasis. These lots total about 1.6 acres of land. This land is currently occupied by 16 dwelling units in 8 structures. The structures were originally built in the 1950's. At the time the application for the zone change was submitted, the site was actively used as a residential facility.

The applicant proposes a mix of multi-family and commercial uses at this site. The current MR zone only allows very limited commercial uses, and multi-family development requires a Conditional Use approval. The MUB zone allows a mix of uses, but expects that no individual block exceed 50% residential. Apartments and a variety of commercial uses are allowed in the MUB zone.

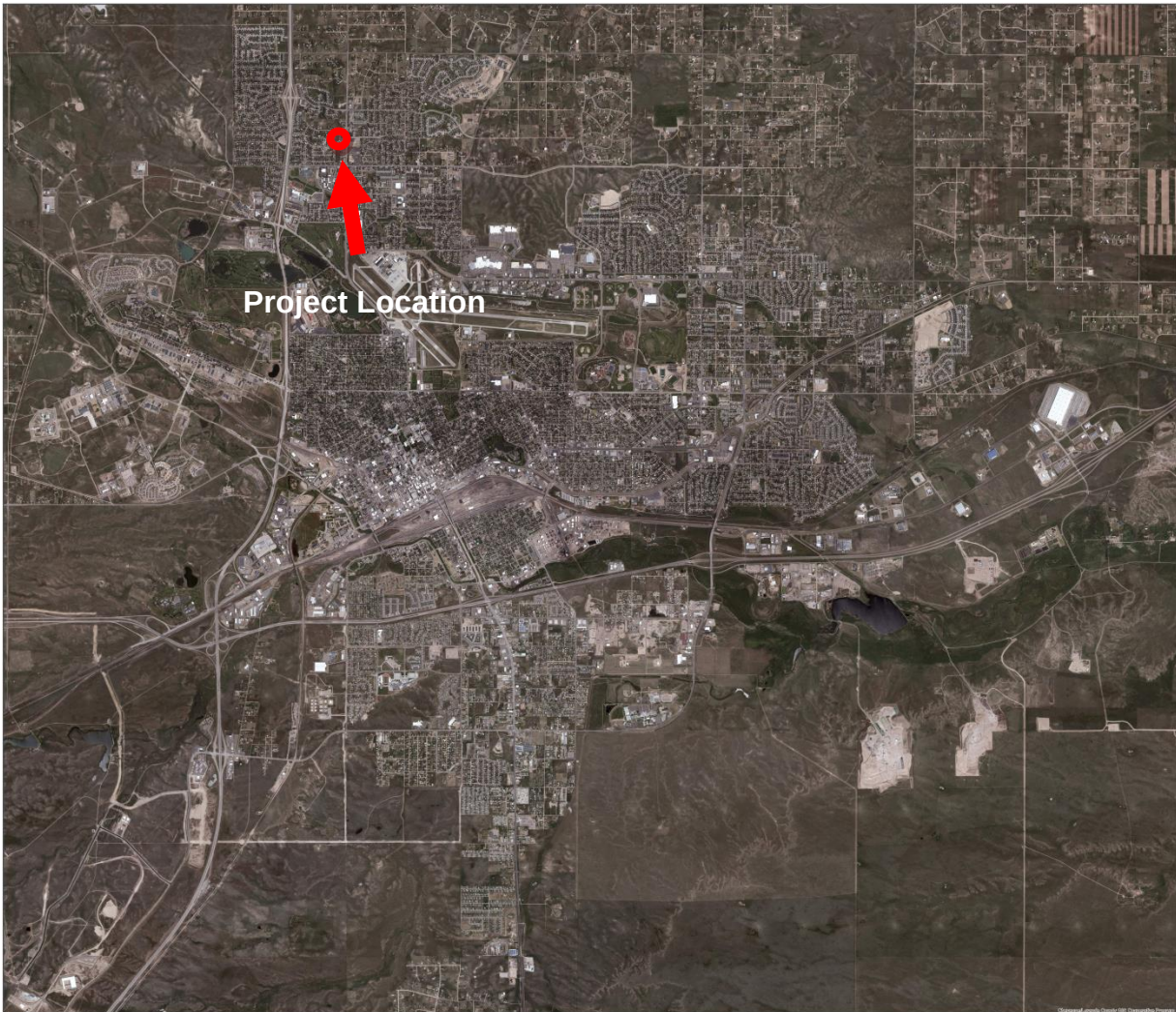
As a smaller, walkable block near a commercial corridor and existing residential neighborhoods, this property meets the intent of the MUB zone district. Development patterns to the south include commercial development set close to the street with a higher design standard – although zoned PUD. Area currently zoned MUB is located nearby, but is not contiguous to this block. Contiguous zones do include a commercial PUD and CB Community Business zoning, but also LR Low-density Residential.

Policies in PlanCheyenne both support and oppose the proposed zone change. PlanCheyenne encourages the maximization of existing infrastructure and MUB zoning in Mixed-use Activity Centers. PlanCheyenne also encourages the protection of existing residential neighborhoods and non-commercial zoning in areas designated Urban Residential.

While MUB zoning is encouraged in Mixed-use Activity Centers, the location of the designated activity center is focused on the intersection of Western Hills/Storey and Yellowstone – making this property on the edge of the Activity Center. While the property is designated Urban Residential, property immediately adjacent is designated Mixed-use Commercial, and the designations on the Future Land Use Map are not intended to strictly pre-determine zones and uses. On the balance, Staff feels the proposed zone change is in accordance with the plans and policies outlined in PlanCheyenne

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change.

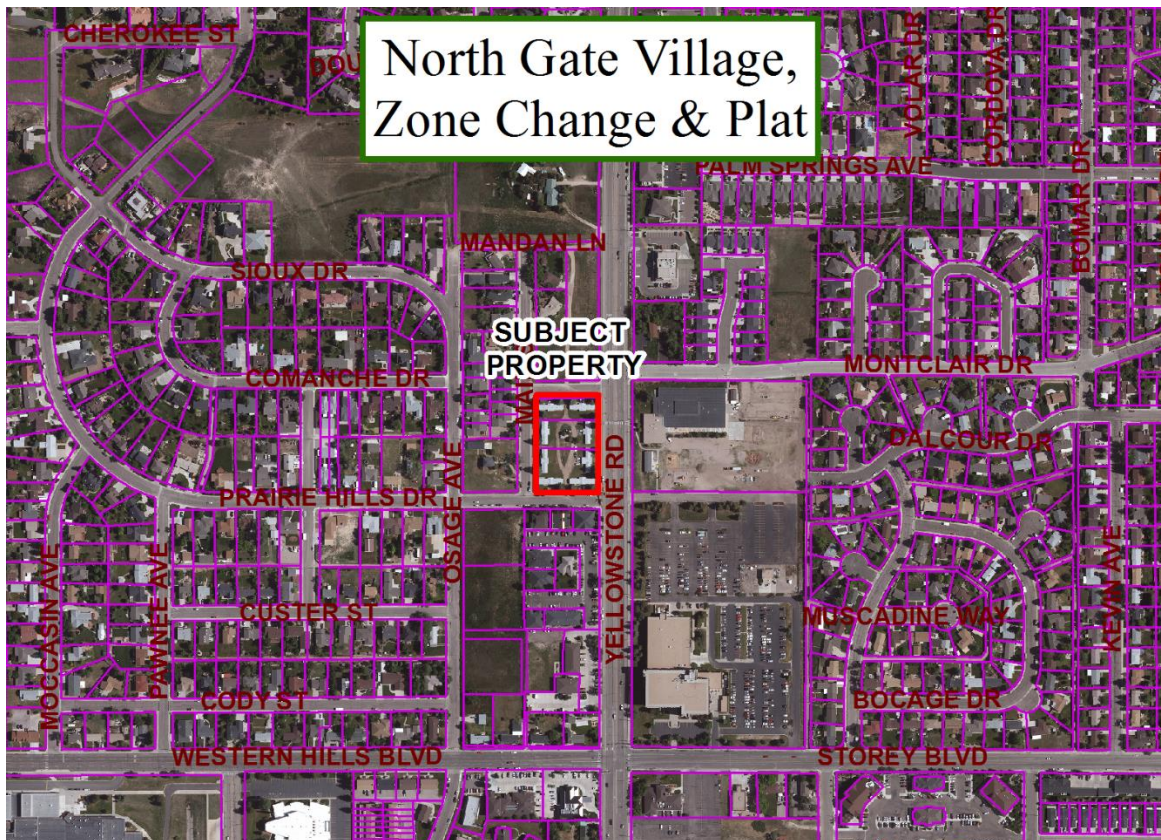
LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located west of Yellowstone Road, north of Western Hills Boulevard

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Image of the subject property from the intersection of North Gate Avenue and Yellowstone Road, facing southwest.
Source: Development Office



Photograph #2 – Image of the subject property from Main Street, south of North Gate Avenue, facing east.
Source: Development Office

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria of Section 2.2.1.d:

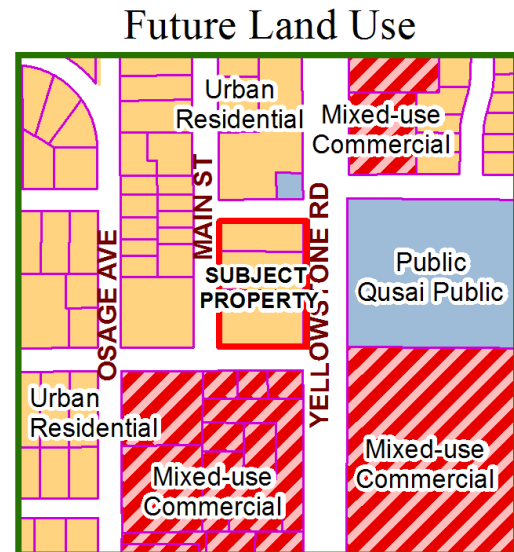
1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne is mixed on this zone change, but on the balance, Staff feels the proposed zone change is in accordance with the plans and policies outlined in PlanCheyenne.

PlanCheyenne encourages maximization of existing infrastructure and redevelopment or revitalization of underutilized areas. This property is currently developed in an area where infrastructure is already installed. The current development on this property is a medium-high density of residential development. Properties near arterials are frequently developed with more intense uses – either commercial or higher-density residential. By rezoning this property to the MUB Mixed-use Business Emphasis zone, more intense uses could be established on this property. However, the maximization of existing infrastructure is not intended to encourage the redevelopment of all of Cheyenne to higher densities, as PlanCheyenne also encourages the stabilization and protection of older, established residential neighborhoods. The proposed change from MR to MUB would likely result in the redevelopment of an existing, 1950's-era residential block. While development on this block dates from the 1950's, the nearby residential properties across Main Street were developed (or redeveloped) in the 1990's.

PlanCheyenne designates the intersection of Western Hills/Storey and Yellowstone as the center of a Mixed-use Activity Center. Mixed-use Activity Centers are intended to develop with a mix of commercial uses with some housing. The CB and MUB zones are encouraged in these activity centers, and MUB zoning is proposed with this zone change. This property is on the edge of the Mixed-use Activity Center area, but still within a quarter-mile of the central intersection.

This area is designated Urban Residential on the Future Land Use Map of PlanCheyenne. The MUB zone is generally not considered an appropriate zone for areas designated Urban Residential. Future Land Use designations on the Future Land Use Map for developed parcels often reflect the exiting development pattern. As the existing development pattern on this block is multi-family residential, the Urban Residential designation matches the existing development pattern well. PlanCheyenne does mention that the Future Land Use Map is NOT intended to pre-determine uses, but is intended to illustrate general concepts for future development. The nearby future land use designation to the south is Mixed-use Commercial, which encourages a mix of commercial and residential development and suggests MUB zoning.

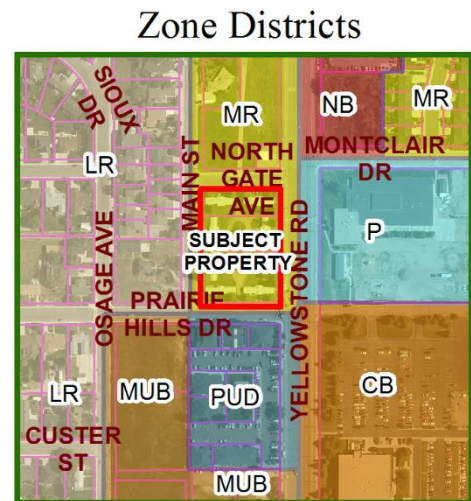


Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS
Cooperative Program

2. SURROUNDING AREA - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The proposed zoning designation is compatible with nearby properties as it matches some of the commercial zoning in the area and as nearby blocks include commercial-style development in the PUD and CB zones. The properties south and west of the PUD area are currently zoned MUB (although about 3½ acres of the area zoned MUB currently sits vacant). The Murray Office Park Second Filing PUD, approved in 1989, is developed with buildings set close to Prairie Hills Drive, and requires building design, screening, and landscaping. Development in the MUB zone would also require building design, landscaping, and structures set close to the street. While there is a large area zoned MUB less than 100' from this land, none of the 5 zone districts immediately adjacent to this area are zoned MUB. The perimeter of this zone change proposal is approximately 1400 linear feet, of this total approximately:

- 27.5% is contiguous to area currently zoned LR (west, across Main Street)
- 25.1% is contiguous to area currently zoned P (east, across Yellowstone Road – Davis Elementary School)
- 22.5% is contiguous to area currently zoned MR (north, across North Gate Avenue)
- 22.5% is contiguous to area currently zoned PUD (south, across Prairie Hills Drive)
- 2.4% is contiguous to area currently zoned CB (southeast, across Yellowstone Road)



Map #4 – Zoning Districts
Source: Cheyenne/Laramie County GIS Cooperative Program

3. ZONING: BASIC STANDARDS & USES - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

This property is currently zoned MR Medium-density Residential, which allows a variety of residential uses. However, the MR zone allows only very limited commercial activity (such as small offices). Apartments are allowed in the MR zone, but must receive conditional use approval.

The proposed zone for this property is the MUB Mixed-use Business Emphasis zone. This zone encourages a mix of residential and commercial uses. Multi-family is a use-by right in the MUB zone, as is a variety of commercial uses. MUB zoning requires additional design standards not generally applicable in the MR zone. The MUB zone does expect that no single MUB block would exceed 50% residential uses. On the associated plat application, the applicant has proposed an Option 1 which does not exceed this maximum; however, an Option 2 (also included with the plat) would create a block with 100% residential development. If zoned MR, the entire block could be developed with residential uses.

4. SUBDIVISION STANDARDS - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.*

The applicant is proposing this zone change without proposing any changes to the streets or blocks. This neighborhood has an established street network. A plat is proposed concurrently with this zone change application which proposes redividing the lots into a new configuration. This zone change does not negatively affect the ability of this land and the surrounding neighborhood to meet any of the other standards found in Article 4.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

The MUB zone is intended to develop with a diverse mix of uses in an area with smaller, walkable blocks and compact development. Non-residential uses are anticipated to service nearby residential areas. MUB zoned areas should have a high degree of pedestrian amenities and meet a higher level of design standards. This property is on a smaller, walkable block with connections to a nearby residential neighborhood. Proximity to Yellowstone will encourage commercial development, and this property is likely able to support a mix of uses.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

The applicant is proposing rezoning this land with the intent to redevelop an existing block with a mix of multi-family residential and commercial uses. The proposed development is able to meet all standards of the proposed zone district. As this block is a smaller, walkable block, a variety of development options meeting MUB zoning intent, applicability, and standards is possible in the event the applicant's specific proposal is not executed.

7. REVIEW – *The review and recommendations of other reviewing bodies.*

Reviewing Agencies with Comments:

- Development Department (Seth Lloyd)
 - o **(FYI)** The MUB zoning applies the lot types of the NR-3 zone for residential development and the NB zone for commercial development. Larger commercial or mixed-use lots may also utilize the MUB lot type.
 - o **(FYI)** Commercial and mixed-use lots must meet the standards of UDC 6.7 Small-scale Mixed-use and Commercial Design Standards.
 - o **(FYI)** Residential lots must meet the standards of UDC 6.6 Residential Design Standards.
- Urban Planning (Seth Lloyd)
 - o **(FYI)** This area is designated Urban Residential and near a Mixed-use Activity Center on the Future Land Use Map of PlanCheyenne. The MUB zone is one of the appropriate

zoning options for Mixed-use Activity Centers, but is generally not considered an appropriate zone for areas designated Urban Residential. This block may have been designated Urban Residential based on the current residential development on-site.

- **(FYI)** PlanCheyenne encourages maximization of existing infrastructure and redevelopment or revitalization of underutilized areas. The MUB zone would allow more dense and varied uses over the current MR zone.
- **(FYI)** PlanCheyenne also encourages the stabilization and protection of older, established residential neighborhoods. The proposed change from MR to MUB would likely result in the redevelopment of an existing, 1950's-era residential neighborhood.

Reviewing Agencies without Comments:

- City Engineer (Amy Allen)
- Development (Susana Montana)
- Engineering Department – General (Mark Escobedo)
- Engineering Department – GIS/Tech (Gary Stogsdill)
- Metro Planning Office (Tom Mason & Nancy Olson)
- Public Works (Nathan Beauheim)
- Urban Planning (Richard Zita)

Reviewing Agencies not Responding:

- None

Other Comments Received:

- None

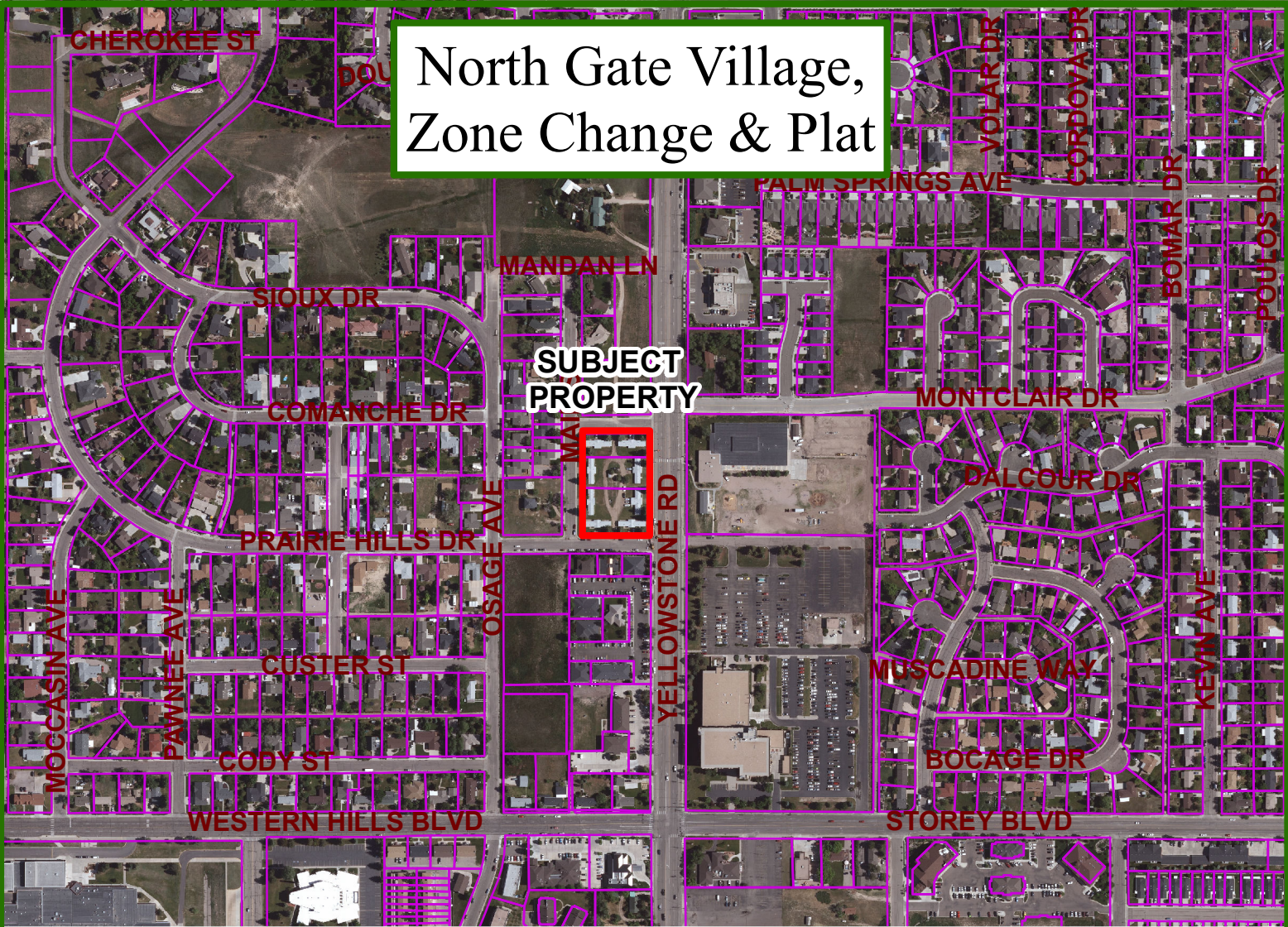
8. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety or general welfare.*

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

Attachments: Aerial Map
Zone Change Map

cc: Owner
Agent/Applicant
File

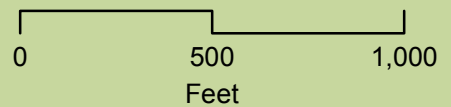
North Gate Village, Zone Change & Plat



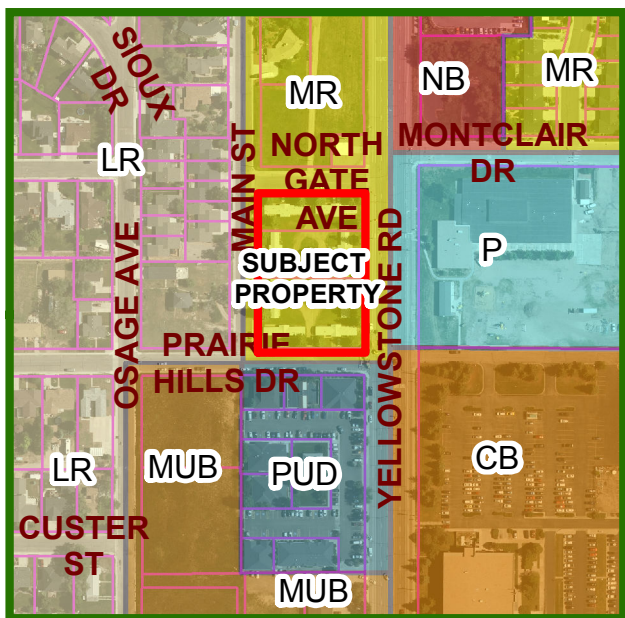
Application Number
Zone Change & Plat
UDC-18-00150
UDC-18-00151

Applicant: Yellowstone Villas LLC
Agent: Brad Emmons
AVI, PC

Scale applies to
above map only

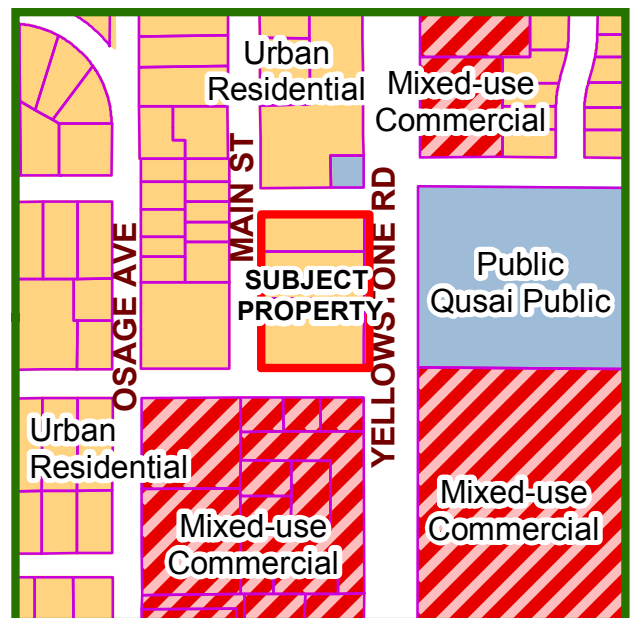


Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



DRAWING NO.		24-004-18		DRAWING NO.		1 OF 1	
DATE		2018		DATE		2018	
DRAWN BY		J. J. J.		CHECKED BY		J. J. J.	
PROJECT		NORTH GATE VILLAGE		DRAWING TITLE		ZONE CHANGE	
PREPARED FOR		YELLOWSTONE VILLAS, LLC		P.O. BOX 3244		CHEYENNE, WY 82003	
NO.				NO.			
REVISION				REVISION			
DATE				DATE			

**ZONE CHANGE
FOR**

NORTH OAK VILLAGE
A REPLAT OF LOTS 1 THRU 5,
BLOCK 19 OF NORTH CHEYENNE, 2ND FILING
ALSO BEING SITUATED IN THE SE $\frac{1}{4}$, SECTION 13, T14N, R67W
OF THE SIXTH PRINCIPAL MERIDIAN, LARAMIE COUNTY, CHEYENNE, WYOMING
PREPARED APRIL, 2018

LEGEND

PROPOSED ZONING - MUB
EX FIRE HYDRANT

ZONING

CURRENT ZONING: MR
PROPOSED ZONING: MUB

COMPUTATION TABLE

PROPOSED USE - RESIDENTIAL AND COMMERCIAL
ESTIMATED TRIPS PER DAY - RESIDENTIAL - 200
COMMERCIAL - TO BE DETERMINED WITH SITE PLAN

LEGAL DESCRIPTION

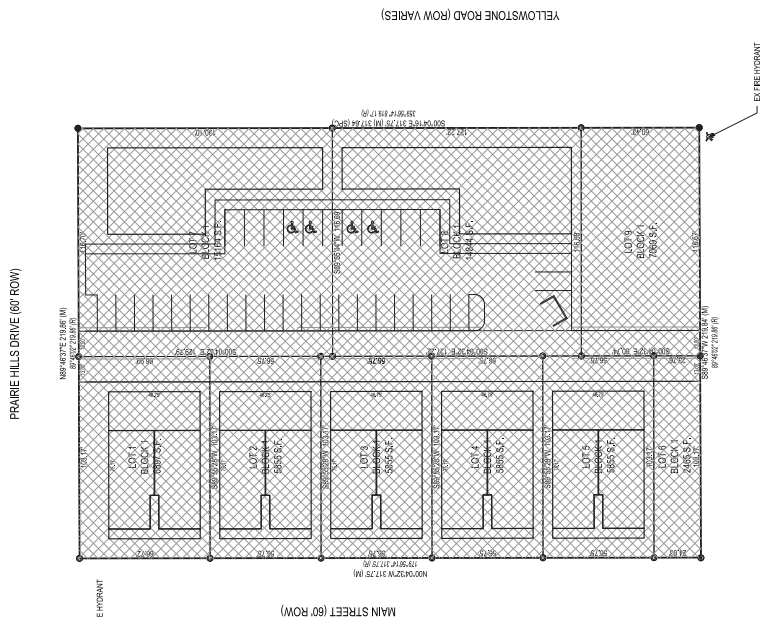
A PARCEL OF LAND BEING SITUATED IN A PORTION OF THE SOUTHEAST ONE-QUARTER OF SECTION 13, TOWNSHIP 14 NORTH, RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN, BEING A REPLAT OF LOTS 1 THRU 5, BLOCK 19 OF NORTH CHEYENNE, 2ND FILING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHEAST

SECTION 10 OF SAID BLOCK 10, SAID NORTHWEST CORNER, AND FILING; THENCE ALONG THE EASTLINE OF SAID BLOCK 10, S80°04'18"E, A DISTANCE OF 317.75 FEET TO THE SOUTHEAST CORNER OF SAID BLOCK 10; THENCE ALONG THE SOUTHLINE OF SAID BLOCK 10, S89°40'52"W, A DISTANCE OF 219.84 FEET TO THE SOUTHWEST CORNER OF SAID BLOCK 10; THENCE ALONG THE WESTLINE OF SAID BLOCK 10, W89°40'52"W, A DISTANCE OF 317.75 FEET TO THE SOUTHWEST CORNER OF SAID BLOCK 10; THENCE ALONG THE WESTLINE OF SAID BLOCK 10, W89°40'52"W, A DISTANCE OF 219.84 FEET TO THE POINT OF BEGINNING.

OWNER
JARAMIE COUNTY SCHOOL DIST NO 1
2810 HOUSE AVE
CHEYENNE, WY 82001
ZONED: P
SCHOOL

OWNER
101 YELLOWSTONE LLC
PO BOX 130
CASPER, WY 82502
ZONED: C8
COMMERCIAL



LOCALITY MAP

